

--SUMMARY--

Decision No. 686/25

28-Jul-2025

K.Seyler - R.Ouellette - I.Thompson

- Permanent impairment {NEL}
- Consequences of injury (secondary condition)
- Tear (meniscus) (medial)
- Tear (tendon) (hamstring)

The issues under appeal were: a) recognition of a permanent impairment and entitlement to a Non-Economic Loss (NEL) determination for the worker's right knee and hamstring injury; and, b) entitlement for a new slip and fall accident on February 3, 2013, as a secondary condition to a work-related disability.

The Panel allowed the appeal.

The Panel found that the worker had a permanent impairment of her right knee and hamstring compensable injuries and was entitled to a NEL determination. The Panel accepted the worker's testimony that she continued to experience a physical and functional abnormality associated with her compensable injury.

The medical reporting documented ongoing weakness in the worker's right leg. In addition, MRI reports showed that the worker continued to have a torn right hamstring which had not been repaired. The worker's ongoing physical and functional abnormality and loss beyond January 7, 2013 supported a finding that the workplace injury had resulted in a permanent impairment.

The Panel accepted that there was a causal link between the slip and fall accident on February 3, 2013 and the worker's compensable right knee and hamstring injury. Based on information from the medical discussion paper, the Panel was persuaded that due to her right hamstring tear and weakness in her right leg, the worker's right leg was less stable and put her at increased risk of suffering a slip and fall accident. In accordance with Policy 15-05-01, the worker was entitled to benefits to compensate for the further aggravation of the work-related impairment as a result of this slip and fall.

13 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w3625s]
- MEDICAL DISCUSSION PAPERS CONSIDERED: Knee Conditions and Disability
- TRIBUNAL DECISIONS CONSIDERED: Decision No. 1063/14, 2014 ONWSIAT 2002 (CanLII) refd to

Style of Cause:

Neutral Citation: 2025 ONWSIAT 881



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 686/25

BEFORE

K. Seyler : Vice-Chair
R. G. Ouellette : Member Representative of Employers
I. Thompson : Member Representative of Workers

HEARING INFORMATION

Date: July 2, 2025
Location: Toronto
Format: Oral by videoconference
Post-hearing activity: Not applicable

DATE OF DECISION July 28, 2025

NEUTRAL CITATION 2025 ONWSIAT 881

DECISION(S) UNDER APPEAL: Appeals Resolution Officer (ARO) S. Godin decision dated March 21, 2024

APPEARANCES

For the worker: O. Soobraydoo, Office of the Worker Adviser
For the employer: Not participating
Interpreter: Not applicable
Tribunal Counsel Office: Not applicable

**Workplace Safety and Insurance
Appeals Tribunal**

505 University Avenue, 7th Floor
Toronto ON M5G 2P2

**Tribunal d'appel de la sécurité professionnelle
et de l'assurance contre les accidents du travail**

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REASONS

1. Introduction

[1] The worker appeals a decision of an Appeals Resolution Officer (ARO) of the Workplace Safety and Insurance Board (WSIB), dated March 21, 2024. The ARO made the following findings:

1. That the worker's claim for a complex tear of the right hamstring muscle is allowed;
2. That the worker's claim for a right knee medial meniscus tear is denied;
3. That the worker reached Maximum Medical Recovery (MMR) for her right hamstring injury without evidence of a permanent impairment (PI) as of January 7, 2013; and
4. That the worker did not have entitlement for a secondary condition resulting from a work-related disability for a new slip and fall accident on February 3, 2013.

[2] The appeal proceeded by way of videoconference before a Panel and the worker testified at the hearing.

2. Issues

[3] The issues under appeal are as follows:

1. Recognition of a PI and entitlement to a Non-Economic Loss (NEL) determination for the worker's right knee and hamstring injury; and
2. Entitlement for a new slip and fall accident on February 3, 2013, as a secondary condition to a work-related disability.

[4] The worker did not appeal the ARO's denial of entitlement for a right knee medial meniscus tear and so that issue is not before this Panel in this appeal. The worker has a

separate claim with the WSIB for a slip and fall accident on December 18, 2017. Entitlement to benefits as a result of that accident is not before this Panel in this appeal.

3. Background

- [5] The worker started as a Community Development Coordinator with the accident employer in 2000. She was injured on October 1, 2012 when she slipped and fell in the course of her employment. Entitlement was allowed for a strain/sprain injury to the right knee and hamstring including health care benefits and LOE benefits. The worker eventually returned to her pre-injury job and health care benefits concluded on January 7, 2013.
- [6] The worker subsequently suffered another slip and fall accident on February 3, 2013 in her driveway at her home while not in the course of her employment. The worker claimed a recurrence of her work-related injury and attributed this slip and fall accident to her compensable right hamstring injury.
- [7] On April 30, 2013 a WSIB Case Manager denied entitlement to benefits for the slip and fall accident of February 3, 2013 on the basis that it was a separate accident not causally related to the original accident on October 1, 2012 and did not occur in the course of employment. The Case Manager denied ongoing entitlement in the claim.
- [8] A request to reconsider the April 30, 2013 decision was denied on June 29, 2022. The worker objected to this decision. Before the ARO, the worker requested entitlement for a complex tear of right hamstring muscle; entitlement to a medial meniscus tear; entitlement for the slip and fall accident of February 3, 2013 and entitlement to a permanent impairment.
- [9] In the decision under appeal, the ARO allowed initial entitlement for a complex tear of the right hamstring muscle on the basis that the diagnosis had been confirmed in an MRI on November 15, 2012. The ARO did not accept that the right medial meniscus tear was causally related to the original slip and fall accident on October 1, 2012. The ARO also denied entitlement to recognition of a permanent impairment for the right hamstring and the right knee on the basis that the worker was attending physiotherapy

until January 7, 2013 and underwent no subsequent treatment. The ARO found that the worker reached MMR without evidence of a permanent impairment as of January 7, 2013. Finally, the ARO denied entitlement for the slip and fall incident of February 2013 on the basis that the worker's prior injury was not a significant contributing factor to the worker suffering the second slip and fall.

4. Law and policy

- [10] Since the worker was injured in 2012, the *Workplace Safety and Insurance Act, 1997*, S.O. 1997, c. 16, Schedule A (WSIA), applies to this appeal. All legislative references in this decision refer to the WSIA as amended, unless otherwise stated.
- [11] Sections 2, 13 and 46 of the WSIA govern the worker's entitlement in this case. Section 2 of the WSIA defines "accident" as follows:
- (a) a wilful and intentional act, not being the act of the worker,
 - (b) a chance event occasioned by a physical or natural cause, and
 - (c) disablement arising out of and in the course of employment;
- [12] Policy 15-02-01, "Definition of an Accident" defines a chance event as "an identifiable unintended event which causes an injury." This policy also states that "an injury itself is not a chance event." A disablement is defined as "a condition that emerges gradually over time" or "an unexpected result of working duties."
- [13] The definition of "accident" in section 2 of the WSIA includes "a chance event occasioned by a physical or natural cause." A chance event is defined in Policy 15-02-01 as "an identifiable unintended event which causes an injury." The policy also states that an "injury itself is not a chance event."
- [14] A chance event has an identifiable mechanism of injury that is distinct from the injury itself. When a decision-maker considers whether an accident is a chance event, they examine how the injury occurred. In other words, they focus on causation. When it is unclear if the accident was a chance event or a disablement, decision-makers analyze the injuring process to see if it was sufficiently discrete or operated over time. If the

injuring process operated over time, the accident is a disablement. If it was sufficiently discrete, the accident was a chance event that caused a sudden onset injury (*Decision No. 1672/04*, 2009 ONWSIAT 150).

- [15] Policy 15-05-01 “Secondary Conditions – Resulting from Work-Related Disability/Impairment” provides that workers sustaining secondary conditions that are causally linked to the work-related injury will derive benefits to compensate for the further aggravation for the work-related impairment or for new injuries. The policy provides that if a worker suffers a second accident, benefits are payable only if it is established that the work-related impairment caused the second accident.
- [16] If a worker’s injury results in permanent impairment, the worker is entitled to compensation for the non-economic loss. This entitlement comes from section 46 of the WSIA. Section 2 of the WSIA defines “impairment” and “permanent impairment” as follows:
- **“impairment”** means a physical or functional abnormality or loss (including disfigurement) which results from an injury and any psychological damage arising from the abnormality or loss
 - **“permanent impairment”** means an impairment that continues to exist after the worker reaches maximum medical recovery
- [17] In addition, Policy 11-01-05, “Determining Permanent Impairment” contains the following definitions:
- “Maximum medical recovery (MMR)”** means that a plateau in recovery has been reached and it is not likely that there will be any further significant improvement in the work-related injury/disease.
- “Significant improvement”** means a marked degree of improvement in the work-related injury/disease that is demonstrated by a measurable change in clinical findings.
- [18] A permanent impairment does not have to be major to be recognized under the WSIA. Rather, the degree of permanent impairment is reflected in the NEL rating (*Decision No. 2948/16*, 2017 ONWSIAT 3119).
- [19] The degree of a worker’s permanent impairment is determined based on the prescribed rating schedule or criteria, medical assessments, and the health information on file. The

prescribed rating schedule for most impairments is the American Medical Association's *Guides to the Evaluation of Permanent Impairment*, third edition (revised). This document is also known as the AMA Guides. The WSIB also uses specific rating schedules for psychological disability, fibromyalgia, chronic pain and other conditions.

- [20] Decisions of the Workplace Safety and Insurance Appeals Tribunal (WSIAT or Tribunal) apply the test of significant contribution to questions of causation. A significant contributing factor is one of considerable effect or importance (*Decision No. 280*, 1987 CanLII 1996 (ON WSIAT)). It does not need to be the only contributing factor (*Decision No. 915*, 1987 CanLII 1258 (ON WSIAT)).
- [21] The standard of proof in workers' compensation proceedings is the balance of probabilities as modified by the benefit of the doubt provisions in the WSIA (*Decision No. 2096/18R*, 2019 ONWSIAT 1482). As stated in section 124(2) of the WSIA, the benefit of the doubt is resolved in favour of the claimant where it is not practicable to decide an issue because the evidence for and against it is approximately equal in weight.
- [22] The WSIB stated that the following policy packages, Revision #9, apply to the subject matter of this appeal:
- Package #300 – Decision Making/Benefit of Doubt/Merits and Justice
 - Package #040 – Maximum Medical Recovery (MMR)
 - Package #031 – Secondary Conditions
 - Package #012 – Adjudicative Process.
- [23] The Panel considered these policies when deciding the issues in the appeal, as required by section 126(1) of the WSIA. All policies referred to are from the WSIB's Operational Policy Manual, unless otherwise stated.

5. Analysis and conclusion

- [24] The appeal is allowed for the reasons set out below.

a. Recognition of a PI and entitlement to a NEL determination

- [25] The Panel finds that the worker is entitled to recognition of a PI for the right knee and hamstring injury and is entitled to a NEL determination. On a balance of probabilities, the Panel finds that the slip and fall accident on October 1, 2012 and associated tear of the right hamstring resulted in a permanent impairment and that the worker is entitled for compensation for the non-economic loss.
- [26] During the hearing, the worker testified as to the nature of her job duties, the mechanism of the slip and fall accident in October 2012 and the nature of her ongoing impairment. The worker explained that her job as a Community Development Coordinator involved working with community groups and planning special events and celebrations for a municipality. The work included both in-office and out-of-office work. She testified that on October 1, 2012 she suffered a bad fall on concrete where she hyperextended her right leg and landed on her buttocks.
- [27] She testified that subsequent to the slip and fall she had extreme pain, swelling and bruising on her buttocks down to her right knee. She described that she walked with a limp, could not bear weight on the leg and had increased flexibility in the right leg. She sought treatment from her family doctor, Dr. Bassil, who referred her for an MRI and a consult with an Orthopaedic Surgeon, Dr. Offierski. She testified that she missed approximately three weeks of work and then returned to work at graduated hours and eventually returned to full-time employment.
- [28] In a report dated November 30, 2012, Dr. Offierski diagnosed the worker with a complete tear of the right hamstring and noted that the semitendinosus was completely torn and the semimembranous was partially torn. Dr. Offierski also noted some minor degenerative changes in the medial meniscus which appeared to be asymptomatic. Dr. Offierski opined that the worker was left with some weakness in the hamstrings and that she should continue with strengthening exercises.
- [29] In a subsequent report dated July 17, 2014, Dr. Offierski noted that the worker continued to have residual weakness of the hamstrings. Dr. Offierski suggested that this would be best managed by hamstring strengthening exercises with a physiotherapist.

- [30] The worker testified that she participated in physiotherapy, massage therapy and chiropractic treatments with the goal of strengthening the muscles around the hamstring in order to stabilize the right leg. The worker testified that prior to the slip and fall she did not play any sports but was an active runner, swimmer and worked out at a gym. She explained that before the slip and fall, she had equal strength in both her left and right leg and had no problems with her right knee or hamstring. She testified that since the slip and fall, she has been left with a permanent impairment, specifically, she has a limp and weakness in her right leg. She described that when she is tired her limp gets more pronounced and she tends to drag her right leg.
- [31] She testified that her right leg impairment impacts her activities of daily living. She explained that she does her best to stay active with walking, swimming, strength training and yoga but that she is unable to do any heavy lifting since the slip and fall in October of 2012 and is no longer able to run, hike, ice skate or ski. She also explained that she has difficulty sitting for long periods of time such as on a plane or in social settings.
- [32] The worker's representative relied on *Decision No. 1063/14*, 2014 ONWSIAT 2002 (CanLII) for the proposition that a worker is entitled to compensation for non-economic loss if the injury has resulted in a continuing physical or functional abnormality or loss. The worker's representative also submitted that this case supports that recognition of a permanent impairment does not require evidence of actual disability, and a permanent impairment need not be major to be compensable.
- [33] The worker's representative also directed the Panel to Dr. Offierski's report dated November 30, 2012 as well as a report from a second orthopaedic surgeon, Dr. Bristow, dated June 8, 2022. In his report Dr. Bristow responds to three questions posed by the worker's representative:

1. What Injuries did [the worker] suffer as a result of the October 2012 incident?

According to the patient, [the worker] had a slip and fall accident on October 1, 2012. As a result of this incident, [the worker] sustained a right proximal hamstring rupture.

2. In your expert opinion, is it likely that the injuries [the worker] suffered in October 2012's accident caused her to experience weakness in her right leg/thigh? Please explain your answer.

Yes, it is likely that the injuries suffered in October 2012's accident does cause [the worker] to experience weakness in her right leg/thigh. [the worker's] current MRI shows a complete hamstring rupture with significant retraction and muscle atrophy. Her original MRI in 2012 also showed a hamstring rupture. These findings would cause [the worker] to experience knee flexion and hip extension weakness.

3. If your answer to question #2 above is yes, in your expert opinion, is it likely that the weakness in the right leg/thigh caused or contributed to the subsequent incident of February 2013? Please explain your answer.

It is likely that the weakness in [the worker's] right leg/thigh caused or contributed to the subsequent incident of February 2013. Given the duration of time from her original injury at the time of her subsequent incident, she would have been experiencing right leg weakness and likely gait abnormalities and pain. These symptoms likely caused or contributed to the subsequent incident in February 2013.

- [34] The Case Record contains another report from Dr. Bristow dated May 16, 2019 in which Dr. Bristow noted that the worker was experiencing right knee pain and hamstring weakness and that she would benefit from physiotherapy and hamstring strengthening exercises.
- [35] It was the submission of the worker's representative that the worker has shown persistent clinical signs of impairment such as difficulty walking, weakness in her right leg, limping and instability which constitutes a permanent impairment and renders her eligible for a NEL assessment.
- [36] The worker's representative addressed an observation in Dr. Offierski's report dated November 30, 2012 where he indicated that the worker walked normally at the time of her assessment. The worker's representative submitted that Dr. Offierski's observations about the worker's gait in November of 2012 were made in a clinical setting where the worker would only have walked a short distance. The worker's representative asked that we accept the worker's testimony that her limp becomes more pronounced when she is tired or after physical activity.
- [37] Based on the evidence before us and on a balance of probabilities, the Panel finds that the worker has a permanent impairment of her right knee and hamstring compensable

injuries and is entitled to a NEL determination. The Panel accepts the worker's testimony that she continues to experience a physical and functional abnormality associated with her compensable injury. This is supported by Dr. Offierski's reports dated November 30, 2012 and July 17, 2014 and Dr. Bristow's report dated May 16, 2019 which all document weakness in the worker's right leg. In addition, MRI reports in the claim file from 2012 and 2024 show that the worker continues to have a torn right hamstring which has not been repaired. The worker's ongoing physical and functional abnormality and loss supports a finding that the workplace injury has resulted in a permanent impairment.

- [38] On a balance of probabilities, the worker has a physical functional abnormality or loss associated with her injury beyond January 7, 2013. The worker therefore has entitlement to recognition of a permanent impairment and a corresponding entitlement to a NEL determination. The NEL rating is remitted to the WSIB for determination, subject to the usual rights of appeal.

b. Entitlement for the slip and fall accident on February 3, 2013

- [39] Based on the evidence before us and on a balance of probabilities, the Panel accepts that there is a causal link between the slip and fall accident on February 3, 2013 and the worker's compensable right knee and hamstring injury. In accordance with Policy 15-05-01, the worker is entitled to benefits to compensate for the further aggravation of the work-related impairment as a result of this slip and fall.
- [40] The worker's representative submitted that the slip and fall on February 3, 2013 occurred within days of the worker receiving treatment for her right knee and hamstring injury which supports that she had not fully recovered from her compensable injuries and that there was a causal link between the original injury and the slip and fall.
- [41] The worker testified that she continued to attend physiotherapy treatment for her right knee and hamstring injury until February of 2013 when her WSIB benefits were closed. She explained that after this date, she continued to seek physiotherapy, massage therapy, osteopath treatment and chiropractic treatment at her own expense.

- [42] The worker testified that she suffered falls approximately once per month for almost two years since the original slip and fall on October 1, 2012. She attributes these slip and fall accidents to limited strength in her right leg. Her evidence was that when she is walking on a slippery surface such as a wet floor or on ice she has to be very careful because she has limited strength to redress her leg if it slips out from under her. Clinical notes from the worker's family doctor, Dr. Bassil, support that she was treated for slip and fall accidents in March of 2014, May of 2014 and December of 2017 with similar accident mechanisms described by the worker in testimony.
- [43] The worker testified that on February 3, 2013 she was experiencing weakness in her right leg. She walked out to her car and her right leg slipped out from under her and she could not redress it. She fell onto the ground on her right leg and buttocks. She testified that it was the same area she injured in October of 2012. The clinical notes and records show that the worker saw her family doctor, Dr. Bassil, the next day and he diagnosed her with a right hamstring strain. Dr. Bassil referred the worker to Dr. Officerski who completed a Health Professional's Progress report (Form 26) which notes a re-injury of the same right hamstring.
- [44] The worker's representative submits that Dr. Bristow's report of June 8, 2022 supports a causal link between the worker's hamstring injury and her slip and fall on February 3, 2013 and that the worker would have been experiencing right leg weakness, gait abnormalities and pain at the time of this slip and fall.
- [45] The worker's representative also directed the Panel to the Tribunal's Medical Discussion Paper (MDP): "Knee Conditions and Disability", prepared in August 2013 by Dr. John Cameron, and revised January 2022 by Dr. R. Litchfield. The MDP discusses the importance of tendons as knee stabilizers to help control knee flexion and translation. The worker's representative noted that the MDP states that the muscles that cross the knee joint add to stability and that "People with muscle atrophy often complain of instability on the basis of poor muscular support for the knee."
- [46] The Panel is persuaded that due to her right hamstring tear and weakness in her right leg, the worker's right leg was less stable and put her at increased risk of suffering a slip

and fall accident. The Panel places significant weight on Dr. Bristow's report dated June 8, 2022, the information in the MDP and the medical reporting that the worker continues to have weakness in her right leg. Based on the evidence before us and on a balance of probabilities, the Panel accepts that there is a causal link between the slip and fall accident on February 3, 2013 and the worker's compensable right knee and hamstring injury. In accordance with Policy 15-05-01, the worker is entitled to benefits to compensate for the further aggravation of the work-related impairment as a result of this slip and fall.

DISPOSITION

[47] The appeal is allowed as follows:

1. The worker has a permanent impairment of her right knee and hamstring injury and is entitled to a NEL determination.
2. The worker has entitlement for a new slip and fall accident on February 3, 2013, as a secondary condition to a work-related disability.

[48] The nature and duration of benefits flowing from this decision are returned to the WSIB for further adjudication, subject to the usual rights of appeal.

DATED: July 28, 2025

SIGNED: K. Seyler, R. G. Ouellette, I. Thompson